Supreme Court 2023-2024 Term

Stat Pack

EmpiricalSCOTUS

Viewing the Supreme Court in an Entirely New Light

Compiled by Adam Feldman (J.D., Ph.D.) and Jake S. Truscott (Ph.D.)

Version: 0.1 (Released <DATE>)

We give particular thanks to <NAME> and <NAME> for their assistance reviewing these materials prior to their public release. For additional data and accompanying analysis, please visit EmpiricalSCOTUS or Contact Us.

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Preface

The enclosed report represents the culmination of a ten-month effort to provide summary statistics and corresponding analysis for the Supreme Court's 2023 Term (October 2023 to June 2024), which we hope to replicate for future terms.

Our goal was to provide a comprehensive overview of the term while recognizing that much of what we offer remains surface-level data. In recent years, some have taken exception to how data such as these are used, particularly as it relates to drawing generalizable claims of the Court and its Justices. We would like to take the time to state our position on these concerns:

First, we fully recognize that our data provides only surface-level inferences. As many have pointed out, the Court retains considerable discretion with respect to the size and scope of its docket. Indeed, a considerable majority of the Court's decision-making is determining which appeals will *not* receive review, rather than what will. It is not lost on us that these x cases decided in the 2023 term are not fully emblematic of the Court's broader decision-making. While we do provide statistics on the docket more generally, we advise pursuing additional scholarship focusing on this area.

Second, our summary analyses do not make distinctions between cases of varying importance to the national discourse. Not because we fail to recognize that these distinctions obviously exist, but because our goal is to provide an overview of the Justices' most observable decision-making behaviors – irrespective of the broader importance some of these decisions may have compared to others. In short, they are numbers – nothing more, nothing less. There is no underlying agenda in our decision to present topline statistics.

Finally, we recognize that these data do not belong to us in perpetuity. Once we have published our report, any person, outlet, or entity are free to use them - just as we have been facilitating open access to our data throughout the term. Nonetheless, we ask those who read our report to be conscientious of the fact that we cannot control - nor do we particularly wish to control - how they are used. The Supreme Court retains special significance in our national discourse, and its decisions can surely draw considerable divisions among observers. Some readers may take exception to how others chose to interpret these data. We ask that you not hold it against us.

We would like to thank all of those who aided in the development of this report – particularly those who offered guidance, fact-checking, and constructive criticism.

- Adam Feldman (J.D., Ph.D.)[1]
- Jake S. Truscott (Ph.D.)[2]

[1] Adam Feldman serves as chief proprietor of the EmpiricalSCOTUS blog and is the principal for the legal data consulting firm *Optimized Legal*.

[2] Jake S. Truscott is a Post-Doctoral Research Associate at the Center for C-SPAN Scholarship & Engagement (Purdue University) and an incoming Assistant Professor of Political Science at the University of Florida.

Data Disclosure

We are particularly grateful to the organized efforts of those maintaining the Supreme Court Database, which is principally hosted by Washington University in St.Louis, Missouri.[3] Their data was pivotal for constructing longitudinal analyses that place the Justices' decision-making during the 2023 term into the broader scope of history.

Apart from data used to develop longitudinal analyses, this report was compiled independently and drew on a multitude of resources to sufficiently track developments and behaviors expressed in the Court's oral arguments, decisions, and docket, among other things. These include, but are not limited to, the Supreme Court's Official Website, Oyez, and Justia, among others.

All data and accompanying replication files used to compile this report are available HERE. For guidance on data usage and replication, please see the document entitled *Data and Replication Guide*. Among these are a folder entitled *Data Files*, which offers a collection of Excel (.xlsx) and R (.Rdata) files containing data relevant to the accompanying analyses on *Decisions* and *Oral Arguments* provided in this report. Alternatively, replication files can be found in the *Replication Files* folder, which contains relevant code to reproduce all of the report's figures and tables in the R Programming Language.

We are, of course, happy to provide any additional insights and guidance on replication of data and other analysis in this report. For help, please Contact Us.

These files and accompanying data are free and available for public use. We just ask that any publication incorporating these data or other material from our report provide a corresponding citation acknowledging the authors and EmpiricalSCOTUS.

Example Citation: Feldman, A. & Truscott, J. S. (2024, June 30). Supreme Court 2023-2024 Term Stat Pack (Version 0.1). *EmpiricalSCOTUS*. Available at: `https://empiricalscotus.com/`

[3] Harold J. Spaeth, Lee Epstein, et al. 2022 Supreme Court Database, Version 2022 Release 1. URL: `http://Supremecourtdatabase.org`

Introduction

Steven Mazie, a veteran Supreme Court Correspondent for *The Economist* and Professor of Political Studies at Bard High School Early College-Manhattan, wrote on *Twitter/X* in February 2024 that he "made a one-pager table of this year's biggest Supreme Court cases for [his] students and after talking them all through in class [he] flabbergasted even [himself]. Five social media cases, two gun cases, two abortion cases, four admin law cases, a case on homelessness and cruel & unusual punishment—plus a schmear of Trump law cases. And more. *It's insane*."

Toplines

Area	Topic	Subset	Value
Decisions	Most Authored Opinions	Majority	
		Concurrences	
		Dissents	
	Decisions (Coalition)	(9-0)	
		(8-1)	
		(7-2)	
		(6-3) Any Combination	
		(6-3) Ideologically Split†	
		(5-4)	
Arguments	Longest Argument (Min.)	.....	
	Most Frequent Arguing Counsel	.....	
	Most Time Speaking	(Term, Justice)	
		(Argument, Justice)	
		(Argument, Attorney)	
Docket	Petitions Filed (Approx.)	.....	

† Representing instances where the six Republican appointees (Roberts, Thomas, Alito, Gorsuch, Kavanaugh, and Barrett) coalesce to the majority while the three Democratic appointees (Sotomayor, Kagan, and Jackson) coalesce to the minority.

Table 1: Topline Statistics (OT2023)

Decisions

Frequency in Majority

Decision by Coalition

Voting Alignments

Opinion Authorship

Split Decisions: (6-3) and (5-4)

Unanimity

Turnover Between Arguments Decision

Circuit Scorecard

Oral Arguments

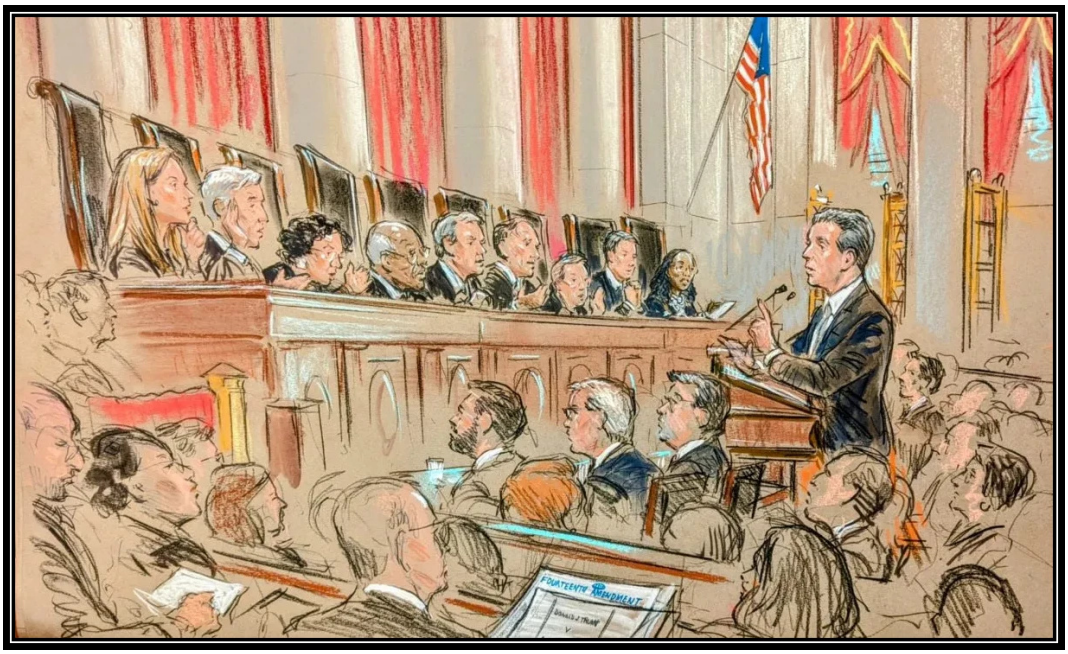

Photo Credit: Courtroom sketch by Bill Hennessy (PBS NewsHour)

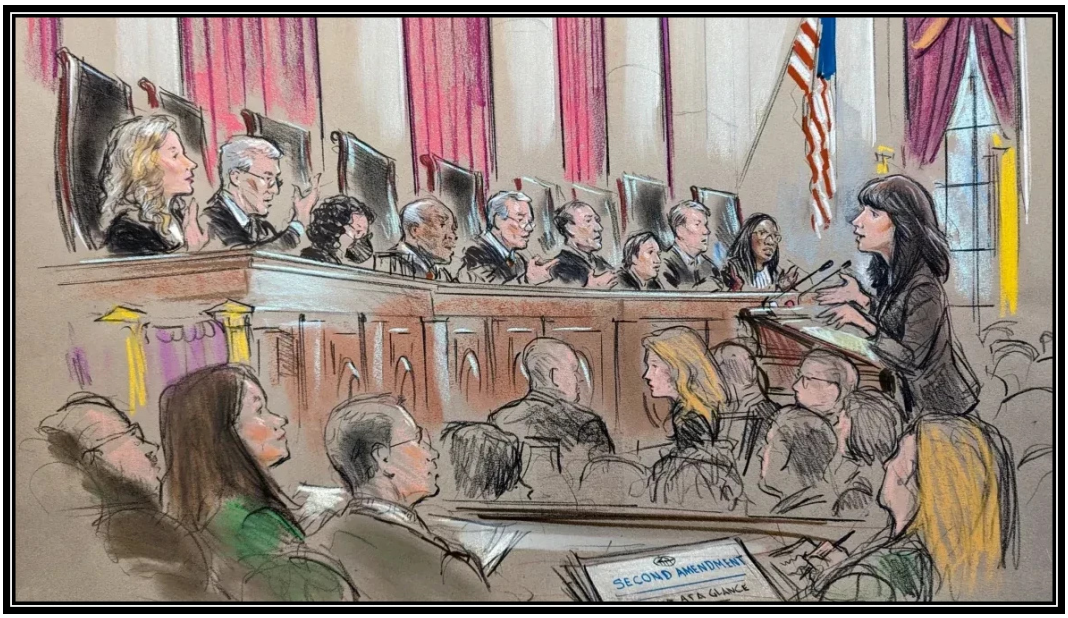

Photo Credit: Courtroom sketch by Bill Hennessy (CNN)

Oral Argument Calendar – 2023 Term

Table 2: October Sitting

Case	Docket	Attorneys
Acheson Hotels, LLC v. Deborah Laufer	22-429	Adam G. Unikowsky Erica L. Ross Kelsi B. Corkran
Alexander v. South Carolina State Conference Of The Naacp	22-807	John M. Gore Leah C. Aden Caroline A. Flynn
CFPB, Et Al. v. Community Financial Services Association Of America, Limited, Et Al.	22-448	Elizabeth B. Prelogar Noel J. Francisco
Great Lakes Insurance Se v. Raiders Retreat Realty Co., LLC	22-500	Jeffrey B. Wall Howard J. Bashman
Mark E. Pulsifer v. United States	22-340	Shay Dvoretzky Frederick Liu
Trevor Murray v. Ubs Securities, LLC, Et Al.	22-660	Easha Anand Anthony A. Yang Eugene Scalia

Table 3: November Sitting

Case	Docket	Attorneys
Department Of Agriculture Rural Development Rural Housing Service v. Reginald Kirtz	22-846	Benjamin W. Snyder Nandan M. Joshi
Halima Tariffa Culley, Et Al. v. Steven T. Marshall, Attorney General Of Alabama, Et Al.	22-585	Shay Dvoretzky Edmund G. LaCour, Jr. Nicole F. Reaves
James R. Rudisill v. Denis R. Mcdonough, Secretary Of Veterans Affairs	22-888	Misha Tseytlin Vivek Suri
Katherine K. Vidal, Under Secretary Of Commerce For Intellectual Property And Director, United States Patent And Trademark Office v. Steve Elster	22-704	Malcolm L. Stewart Jonathan E. Taylor
Kevin Lindke v. James R. Freed	22-611	Allon Kedem Victoria R. Ferres Masha G. Hansford
Michelle O'connor-Ratcliff, Et Al. v. Christopher Garnier, Et Ux.	22-324	Hashim M. Mooppan Sopan Joshi Pamela S. Karlan
United States v. Zackey Rahimi	22-915	Elizabeth B. Prelogar J. Matthew Wright

Table 4: December Sitting

Case	Docket	Attorneys
Charles G. Moore, Et Ux. v. United States	22-800	Andrew M. Grossman Elizabeth B. Prelogar
Damian Mcelrath v. Georgia	22-721	Richard A. Simpson Stephen J. Petrany
Jatonya Clayborn Muldrow v. City Of St. Louis, Missouri, Et Al.	22-193	Brian Wolfman Aimee W. Brown Robert M. Loeb
Justin Rashaad Brown v. United States	22-6389	Jeffrey T. Green Andrew L. Adler Austin L. Raynor
Securities And Exchange Commission v. George R. Jarkesy, Jr., Et Al.	22-859	Brian H. Fletcher S. Michael McColloch
Situ Kamu Wilkinson v. Merrick B. Garland, Attorney General	22-666	Jaime A. Santos Colleen E. Roh Sinzdak
William K. Harrington, United States Trustee, Region 2 v. Purdue Pharma L.p., Et Al.	23-124	Curtis E. Gannon Gregory G. Garre Pratik A. Shah

Table 5: January Sitting

Case	Docket	Attorneys
Federal Bureau Of Investigation, Et Al. v. Yonas Fikre	22-1178	Sopan Joshi Gadeir Abbas
George Sheetz v. County Of El Dorado, California	22-1074	Paul J. Beard II Aileen M. McGrath Erica L. Ross
Jason Smith v. Arizona	22-899	Hari Santhanam Eric J. Feigin Alexander W. Samuels
Loper Bright Enterprises, Et Al. v. Gina Raimondo, Secretary Of Commerce, Et Al.	22-451	Paul D. Clement Elizabeth B. Prelogar
Macquarie Infrastructure Corporation, Et Al. v. Moab Partners, L.p., Et Al.	22-1165	Linda T. Coberly David C. Frederick Ephraim McDowell
Moris Esmelis Campos-Chaves v. Merrick B. Garland, Attorney General	22-674	Charles L. McCloud Easha Anand
Office Of The United States Trustee v. John Q. Hammons Fall 2006, LLC, Et Al.	22-1238	Masha G. Hansford Daniel L. Geyser
Relentless, Inc., Et Al. v. Department Of Commerce, Et Al.	22-1219	Roman Martinez Elizabeth B. Prelogar
Richard Devillier, Et Al. v. Texas	22-913	Robert J. McNamara Aaron L. Nielson Edwin S. Kneedler

Table 6: February Sitting

Case	Docket	Attorneys
Alex Cantero, Et Al., Individually And On Behalf Of All Others Similarly Situated v. Bank Of America, N.a.	22-529	Jonathan E. Taylor Malcolm L. Stewart Lisa S. Blatt
Ashley Moody, Attorney General Of Florida, Et Al. v. Netchoice, LLC, Dba Netchoice, Et Al.	22-277	Henry C. Whitaker Paul D. Clement Elizabeth B. Prelogar
Coinbase, Inc. v. David Suski, Et Al.	23-3	Jessica L. Ellsworth David J. Harris
Corner Post, Inc. v. Board Of Governors Of The Federal Reserve System	22-1008	Bryan K. Weir Benjamin W. Snyder
Donald J. Trump v. Norma Anderson, Et Al.	23-719	Jonathan F. Mitchell Jason C. Murray Shannon W. Stevenson
Louis Mcintosh, Aka Lou D v. United States	22-7386	Steven Y. Yurowitz Matthew Guarnieri
Merrick B. Garland, Attorney General, Et Al. v. Michael Cargill	22-976	Brian H. Fletcher Jonathan F. Mitchell
Neal Bissonnette, Et Al. v. Lepage Bakeries Park St., LLC, Et Al.	23-51	Jennifer D. Bennett Traci L. Lovitt
Netchoice, LLC, Dba Netchoice, Et Al. v. Ken Paxton, Attorney General Of Texas	22-555	Paul D. Clement Elizabeth B. Prelogar Aaron L. Nielson
Ohio, Et Al., Applicants, v. Epa, Et Al.	23A349	Mathura J. Sridharan Catherine E. Stetson Malcolm L. Stewart Judith N. Vale
Warner Chappell Music, Inc., Et Al. v. Sherman Nealy, Et Al.	22-1078	Kannon K. Shanmugam Joe Wesley Earnhardt Yaira Dubin

Table 7: March Sitting

Case	Docket	Attorneys
Delilah Guadalupe Diaz v. United States	23-14	Jeffrey L. Fisher Matthew Guarnieri
Food And Drug Administration, Et Al. v. Alliance For Hippocratic Medicine, Et Al.	23-235	Elizabeth B. Prelogar Jessica L. Ellsworth Erin M. Hawley
National Rifle Association Of America v. Maria T. Vullo	22-842	David D. Cole Ephraim McDowell Neal Kumar Katyal
Paul Erlinger v. United States	23-370	Jeffrey L. Fisher Eric J. Feigin D. Nick Harper
Stuart R. Harrow v. Department Of Defense	23-21	Joshua P. Davis Aimee W. Brown
Sylvia Gonzalez v. Edward Trevino, Ii, Et Al.	22-1025	Anya A. Bidwell Nicole F. Reaves Lisa S. Blatt
Texas, Plaintiff, v. New Mexico And Colorado, Defendants	22O141	Frederick Liu Lanora C. Pettit Jeffrey J. Wechsler
Thomas A. Connelly, As Executor Of The Estate Of Michael P. Connelly, Sr. v. United States	23-146	Kannon K. Shanmugam Yaira Dubin
Truck Insurance Exchange v. Kaiser Gypsum Company, Inc., Et Al.	22-1079	Allyson N. Ho Anthony A. Yang C. Kevin Marshall
Vivek H. Murthy, Surgeon General, Et Al. v. Missouri, Et Al.	23-411	David C. Frederick Brian H. Fletcher J. Benjamin Aguinaga
Xavier Becerra, Secretary Of Health And Human Services, Et Al. v. Respondent	23-250	Caroline A. Flynn Adam G. Unikowsky Lloyd B. Miller

Oral Argument Participation – Justices

Oral Argument Participation – Attorneys

Oral Argument – Time for Arguments

Docket

Filing Trends – 2023 Term

Emergency Orders

Final Notes

Endnotes

References